

FIRST ENDORSEMENT

Chief Prosecutor APU, Andre Applewhite, Civilian Complaint Review Board to Deputy Commissioner Paul M. Gamble, Department Advocate's Office February 9, 2024. Contents noted. Recommend approval of the negotiated plea agreement in DADS No. 2023-28140 against Sergeant Juan Burgos, Tax Registry No 932380. This case was conferenced on February 6, 2024 before Assistant Deputy Commissioner of Trials, Vanessa Facio-Lince who approved the negotiated penalty of a Command Discipline Schedule B and the forfeiture of ten (10) vacation days. Charges and Specifications will be dismissed for plea purposes.

Andre D. Applewhite

Andre Applewhite

Chief Prosecutor APU

New York City Civilian Complaint Review Board

**DISPOSITION OF CHARGES**

PD 468-142(Rev. 8-89)-2

CASE NO. 2023-28140
BOOK & PAGE NO. Page 1 of 2
PERSONNEL ORDER NO.

RANK/TITLE SGT	SURNAME, BURGOS	FIRST JUAN	M.I. A	COMMAND 044 PRECINCT
SHIELD NO. 5644	TAX REGISTRY NO. 932380	SOCIAL SECURITY NO.	DATE APPOINTED 07/01/2003	

RANK/NAME OF COMPLAINANT	COMMAND
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DATE OF CHARGES	DATE TRIAL COMMENCED	DATE TRIAL CONCLUDED
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TRIAL COMMISSIONER

SPECIFICATION	DISPOSITION	RECOMMENDED PENALTY PLEA [X] TRIAL []
1 . Sergeant JUAN BURGOS, on or about October 1, 2021, at approximately 2130, while assigned to 044 PCT and on duty, in the vicinity of Morris Avenue and East 165th Street, Bronx County, used offensive language, in that, they made remarks to § 87(2)(b) based upon his perceived speech disability	DISMISSED	B - COMMAND DISCIPLINE 1.00 - It is recommended that the Charges and Specifications be dismissed and that the matter be remanded to the Respondents command for imposition of a Schedule B Command Discipline with the forfeiture of the amount of vacation days as indicated. VACATION DAYS 10.00 - It is recommended that the Respondent forfeit the amount of vacation days as indicated.
2 . Sergeant JUAN BURGOS, on or about October 1, 2021, at approximately 2130, while assigned to 044 PCT and on duty, in the vicinity of Morris Avenue and East 165th Street, Bronx County, was discourteous, in that, they acted discourteously toward § 87(2)(b) without sufficient legal authority, by repeating the word That That That in a stuttering manner, mocking § 87(2)(b) perceived speech disability.	DISMISSED	
3 . Sergeant JUAN BURGOS, on or about October 1, 2021, at approximately 2130, while assigned to 044 PCT and on duty, at the 44th Precinct stationhouse, Bronx County, was discourteous, in that, they engaged in conduct prejudicial to	DISMISSED	

DC Burtis
FIRST DEPUTY COMMISSIONER

3/15/24
DATE

POLICE COMMISSIONER'S APPROVAL☒ Approved☐ Disapproved☐ Other Action (Describe)

Edward A. Caber
POLICE COMMISSIONER

4/30/24
DATE

**DISPOSITION OF CHARGES**

PD 468-142(Rev. 8-89)-2

CASE NO.
2023-28140BOOK & PAGE NO.
Page 2 of 2

PERSONNEL ORDER NO.

RANK/TITLE SGT	SURNAME, BURGOS	FIRST JUAN	M.I. A	COMMAND 044 PRECINCT
SHIELD NO. 5644	TAX REGISTRY NO. 932380	SOCIAL SECURITY NO.	DATE APPOINTED 07/01/2003	
RANK/NAME OF COMPLAINANT				COMMAND
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TRIAL COMMISSIONER				
SPECIFICATION		DISPOSITION		RECOMMENDED PENALTY PLEA [X] TRIAL []
good order, efficiency, or discipline of the department in that, they acted discourteously toward § 87(2)(b) without sufficient legal authority, by failing to follow the Patrol Guides General Search Guidelines for religious head coverings.				

DC Burtis
FIRST DEPUTY COMMISSIONER

3/15/24
DATE

POLICE COMMISSIONER'S APPROVAL☒ Approved☐ Disapproved☐ Other Action (Describe)

Edward A. Cab...
POLICE COMMISSIONER

4/30/24
DATE

THIRD ENDORSEMENT

First Deputy Commissioner to Police Commissioner, March 15, 2024. Contents noted. I reviewed the negotiated plea in Disciplinary Case No. 2023-28140 against Sergeant Juan Burgos, Tax #932380, with the recommendation that the Charges and Specifications against Sergeant Burgos be dismissed and that Sergeant Burgos receive a Schedule "B" Command Discipline and forfeit ten (10) vacation days. Assistant Deputy Commissioner, Trials Vanessa Facio-Lince reviewed this case and made a favorable recommendation pertaining to the proposed settlement; I concur. **RECOMMEND APPROVAL.**

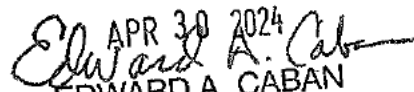
TIK/pk



Tania I. Kinsella

FIRST DEPUTY COMMISSIONER

APPROVED

APR 30 2024

EDWARD A. CABAN
POLICE COMMISSIONER